

Court No. - 21

Case :- WRIT - C No. - 44645 of 2014

Petitioner :- Murari Lal

Respondent :- State Of U.P. & 2 Others

Counsel for Petitioner :- Anil Kumar Shukla

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Vivek Kumar Birla,J.

Heard learned counsel for the petitioner and Sri Baleshwar Chaturvedi for the respondents no.2 and 3.

The petitioner is the owner of a tubewell that is energized by an electricity connection, but the petitioner has defaulted in the payment of electricity dues and consequently he is facing permanent disconnection.

Learned counsel for the petitioner submits that in a similar case relating to one Ganga Prasad and the consumer, the Executive Engineer on the strength of the orders passed by the Superintending Engineer has restored the electricity supply connection on the ground that there was some discrepancy in the invoice of the data maintained in the computers.

The petitioner is prepared to pay the entire dues.

Let the petitioner approach the respondent no.3-Executive Engineer and if the petitioner clears off the dues in accordance with the directions of the Executive Engineer which can also be by way of easy installments as provided under Clause 6.14 of the Electricity Supply Code, 2005, then in that event the petitioner's connection shall be reenergised in accordance with the rules by passing appropriate orders within three weeks, provided there is no other legal impediment.

With the aforesaid observations, this writ petition is disposed of.

Order Date :- 27.8.2014

Anand Sri./-